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 The Minister of Education, Culture and Science
 P.O. Box 16375
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 Date

November 14, 2023

Our reference

z2023-02913

Your letter of

June 26, 2023

Subject

Advice on the draft for the Act from school to sustainable work

Dear Mr. Dijkgraaf,

In your letter of June 26, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the Proposal for an Act amending the Education and Vocational Education Act and several other laws to promote equal opportunities by improving the guidance of young people at risk of distance from the labor market towards sustainable economic independence (Act from school to sustainable work) (hereinafter: the draft).

By email dated October 10, 2023, the Ministry of Education, Culture and Science (OCW) sent two amended articles.¹

The assessment of the personal data aspects of the draft gives the AP reason to make several comments.

Scope of the draft

The draft aims to increase equal opportunities by guiding young people with (a risk of) distance from the labor market in the transition from school to work and in retaining work in the event of (impending) unemployment.² To this end, the draft proposes the following four measures:³

1. MBO schools will provide additional career guidance to young people who need it in the final phase of their education up to one year after obtaining their diploma.⁴

2. The age of the young people supported by the Transition Point⁵ will be raised from 23 to 27 years.

If the young person has given consent for support from the Transition Point, the Transition Point may process health data and personal data of a criminal nature insofar as this is necessary for that support.⁶

The contact municipality⁷ of the Transition Point provides all requested data for inspection to the persons designated by the Minister of OCW and provides them with the requested information that is relevant to the policy of the Minister of OCW regarding the promotion of the number of young people up to 27 years who obtain a starting qualification⁸ and the improvement of the transition from education to the labor market.⁹

3. Municipalities¹⁰ will have a role in supporting young people towards work who cannot find their way in the labor market independently or with light support from the school or the Transition Point.

If the young person gives consent for support from the municipality, the MBO school will prepare a transition document and provide this document to the municipality.¹¹

The school will also provide all requested documents for inspection to the persons designated by the municipality and will provide all information that the municipality reasonably needs for the support of a young person.¹²

4. The draft regulates that MBO schools must offer this guidance at least to students and graduates of the entrance program and the vocational training pathway of the basic vocational education (excluding graduates with a registration for further education) and that guidance may also be offered to students or graduates of other levels.

5. The Transition Point (formerly known as the Regional Reporting and Coordination Function for early school leavers (RMC)) is a municipal task to support young people without a starting qualification towards education or, if this is not appropriate, work.

6. Article 9.2.7 of the WEB, as proposed by email of October 10, 2023:

If the person concerned has given consent for support under Article 9.2.5, the municipal executive may process health data and personal data of a criminal nature as referred to in paragraph 3.1 respectively paragraph 3.2 of the Implementation Act of the General Data Protection Regulation of the person referred to in Article 9.2.1, insofar as this is necessary for the implementation of Article 9.2.5.

7. Municipalities in a Transition Point region designate one contact municipality from among themselves. The contact municipality performs coordinating tasks in the context of supporting young people.

8. Diploma of HAVO, VWO, MBO level 2 or higher. Young people under 18 are required to obtain a starting qualification.

9. The proposed Article 9.2.11, first paragraph, of the WEB.

10. This refers to the implementers of the Participation Act and not the municipal Transition Points.

11. Article 9.2.13, second paragraph, of the WEB, as proposed by email of October 10, 2023:

If the person concerned gives consent for the continuation of support by the municipal executive, the competent authority prepares a transition document in accordance with Article 14e of the Expert Centres Act and provides this document to the municipal executive.

12. The proposed Articles 9.2.3 of the WEB, 148 of the Expert Centres Act, and 8.21 of the Secondary Education Act 2020.

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4. The basis for collaboration between vocational schools, the Transition Point, and the municipalities is improved.

Advice

Basis

Data processing must be based on a legal basis, as referred to in Article 6, paragraph 1, of the GDPR. This article mentions, among other things, consent (under a.) and legal obligation (under e.) as legal bases.

The draft stipulates that if the young person has given consent for support from the Transition Point, the Transition Point may process health data and personal data of a criminal nature (see above under 2.). It also states that if the young person gives consent for support from the municipality, the vocational school will prepare a transition document and provide this to the municipality (see above under 3.).

The Ministry of Education, Culture and Science (OCW) indicated via email on October 10, 2023, that the legal basis for data processing is the legal obligation. According to the ministry, consent pertains to support and not to data processing.

Although the Dutch Data Protection Authority (AP) agrees with this reasoning (the consent for support

is comparable to a voluntary application for something)¹³, confusion regarding the legal basis may arise due to the choice of the word 'consent', without the explanatory memorandum providing clarification on this matter.

The AP advises against using the term 'consent' and/or to substantiate the legal basis for data processing in the explanatory memorandum.

Legal certainty

Legislation regarding interference with the right to protection of personal data must, according to established case law, always be clear and precise, and its application must be predictable for those to whom it applies.¹⁴ Formulations such as 'the provision of all requested documents, information, or data that are reasonably necessary or relevant' (see above under 2. and 3.) and 'to persons designated by the municipality' (see above under 3.) do not align with this.

The AP advises to legally limit the data disclosures (possibly with the help of a delegation basis) and to substantiate the necessity of this in the explanatory memorandum, or to explain in the memorandum why a exhaustive enumeration is impossible or undesirable.¹⁵ The AP also advises to clarify who is meant by 'persons designated by the municipality'.

¹³ Although young people are actively approached in this context.

¹⁴ Recital 41 of the GDPR.

¹⁵ Regarding the data disclosures to the Minister of OCW for policy: to the extent that personal data is involved.

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Ground for exception to the prohibition on processing special personal data

The draft stipulates that the Transition Point may also process special personal data, namely health data. The processing of special personal data is prohibited,¹⁶ unless there is an exception.¹⁷ The explanatory memorandum does not indicate which exception applies.

The AP advises to specify in the explanatory memorandum which exception applies and how the requirements set by the relevant exception are met.

Advising Caribbean Netherlands

The explanatory memorandum states that the task of providing additional career guidance also applies to vocational schools on the BES islands.¹⁸ The AP is only authorized to advise on the draft insofar as it concerns European Netherlands. The AP advises that the draft, if this has not yet been done, should also be submitted for advice to the Commission for the Supervision of Personal Data Protection BES.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman

¹⁶ Article 9, paragraph 1, of the GDPR.

¹⁷ Article 9, paragraph 2, of the GDPR.

18 Explanatory memorandum, p. 38. The other proposed measures do not apply to Caribbean Netherlands.